

## Calendar Line 8

**Case Name:** *Gary Roberts vs CERBERUS SENTINEL et al*

**Case No.:** 24CV452572

Plaintiff moves to transfer the lawsuit that he filed in this court to the Santa Cruz County Superior Court. Citing Code of Civ. Proc., §§ 395 and 396b, Plaintiff lists several reasons why Santa Cruz County is the proper venue. The motion is unopposed.

It appearing to this Court that the action or proceeding was not commenced in the proper court, Plaintiff's motion is GRANTED, and the action or proceeding is hereby TRANSFERRED to the proper court, the Santa Cruz County Superior Court. (Code of Civ. Proc., § 395b(a).)

Plaintiff shall be responsible for all court fees and costs required for the transfer of the action and all fees and costs due to the receiving court. This includes a \$50.00 processing fee due to this court to process the transfer. Plaintiff is likewise responsible for the filing fee of \$435.00 payable to the receiving court. Plaintiff shall submit to the clerk of this Court a check in the amount of \$435.00 payable to the receiving court within 20 days of the date of the hearing on the instant motion.

Future court dates in this Court are VACATED.

The Court will prepare the final order.

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## Calendar Line 10

**Case Name:** *Madadi v. Tesla, Inc.*

**Case No.:** 25CV479611

### I. BACKGROUND

On April 11, 2023, Plaintiff Prakyath Madadi (“Plaintiff”) purchased a new 2023 Tesla Model 3, VIN No. 5YJ3E1EA5PF555074 (“Subject Vehicle”). (Complaint at ¶ 9.) Plaintiff ordered the vehicle online and in so doing, executed a Motor Vehicle Order Agreement (“MVOA”). (Declaration of Raymond Kim [“Kim Decl.”] at ¶ 3.) The MVOA contains an arbitration clause as follows:

**Agreement to Arbitrate.** Please carefully read this provision, which applies to any dispute between you and Tesla, Inc. and its affiliates, (together “Tesla”).

If you have a concern or dispute, please send a written notice describing it and your desired resolution to [resolutions@tesla.com](mailto:resolutions@tesla.com)

If not resolved within 60 days, you agree that any dispute arising out of relating to any aspect of the relationship between you and Tesla will not be decided by a judge or jury but instead by a single arbitrator in an arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules. This includes claims arising before this Agreement, such as claims related to statements about our products. You further agree that any disputes related to the arbitrability of your claims will be decided by the court rather than an arbitrator, notwithstanding AAA rules to the contrary.

To initiate the arbitration, you will pay the filing fee directly to AAA and we will pay all subsequent AAA fees for the arbitration, except you are responsible for your own attorney, expert, and other witness fees and costs unless provided by law. If you prevail on any claim, we will reimburse you your filing fee. The arbitration will be held in the city or county of your residence. To learn more about the Rules and how to begin an arbitration, you may call any AAA office or go to [www.adr.org](http://www.adr.org).

The arbitrator may only resolve disputes between you and Tesla, and may not consolidate claims without the consent of all parties. The arbitrator cannot hear class or representative claims or requests for relief on behalf of others purchasing or leasing Tesla vehicles. In other words, you and Tesla may bring claims against the other only in your or its individual capacity and not as a plaintiff or class member in any class or representative action. If a court or arbitrator decides that any part of this agreement to